

Jitendra Kumar Gupta & Anr. v. State of U.P. & Ors.

Allahabad High Court (Lucknow Bench) · Division Bench · 7 February 2017 · Misc. Bench No. 2645 of 2017 · **Writ petition disposed of (subsequent purchaser liable for premises dues, subject to adjustment; 50% deposit for connection)**

HEADNOTE

Under Clause 4.3(f) of the U.P. Electricity Supply Code, 2005, the 'outstanding dues' on a premises include all electricity dues — whether arising from a valid connection or from a post-theft assessment — and are realizable from a subsequent purchaser, who must obtain a No-Dues Certificate; the fact that the theft was a personal criminal liability of the previous occupant does not exclude the assessed amount, which is a due on the premises. Recovery from the purchaser is, however, subject to adjustment against any amount recovered from the original defaulter, so there is no double recovery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(f)

Subsequent purchaser liable for premises dues, including a theft assessment

QUESTION

Can a subsequent purchaser be required to clear dues that include a theft assessment against the previous occupant, before a fresh connection?

HOLDING

Yes. 'Outstanding dues' under Clause 4.3(f) means all dues pending on the premises, including a post-theft assessment, and attach to the premises; the purchaser must obtain a No-Dues Certificate. The theft being a personal criminal liability of the previous occupant does not exclude the assessed civil amount. But recovery from the purchaser is subject to adjustment against any amount recovered from the original defaulter (no double recovery); here, a practical direction to deposit 50% to obtain the connection. ¶ [the Clause 4.3\(f\) discussion \(unnumbered order\)](#)

LIMITING FACTS

The petitioners bought a premises against which a theft assessment (~Rs. 2.8 lakh) stood against the former tenant; the sale deed itself recited that there was no valid connection.

PRINCIPLE TAGS

arrears-run-with-the-premises 'Outstanding dues' on a premises (including a theft assessment) attach to the premises and are recoverable from a subsequent purchaser, who must obtain a No-Dues Certificate — subject to adjustment against recovery from the original defaulter. ¶ [unnumbered order](#)